

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX
-----X

SHAWN BROWN,

INDEX NO:

DATE PURCHASED:

Plaintiff,

-against-

THE CITY OF NEW YORK and THE NEW
YORK CITY POLICE DEPARTMENT, POLICE
OFFICER PRINCE PHILIP, POLICE OFFICE
JULIO ADAMES, and POLICE OFFICER
JOHN DOE(S),

Defendants.
-----X

SUMMONS

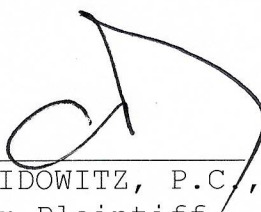
Plaintiff designates
BRONX COUNTY
The basis of venue is

SITUS OF THE INCIDENT
222nd Street and
Carpenter Avenue
Bronx, NY 10466

TO THE ABOVE-MENTIONED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 6, 2024


CRAIG L. DAVIDOWITZ, P.C.,
Attorneys for Plaintiff
Office and P.O. Address
450 Seventh Avenue, Suite 2702
New York, New York 10123
Tel: (212) 378-2051

Defendants' Addresses:

THE CITY OF NEW YORK

100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

100 Church Street
New York, New York 10007

POLICE OFFICER PRINCE PHILIP

1 Police Plaza Path
New York, NY 10007

POLICE OFFICER JULIO ADAMES

1 Police Plaza Path
New York, NY 10007

POLICE OFFICER JOHN DOE(S)

1 Police Plaza Path
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SHAWN BROWN,

INDEX NO:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK and THE NEW
YORK CITY POLICE DEPARTMENT, POLICE
OFFICER PRINCE PHILIP, POLICE OFFICER
JULIO ADAMES, and POLICE OFFICER JOHN
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Defendants.
-----X

Plaintiff SHAWN BROWN by her attorney, Craig L. Davidowitz,
P.C., hereby respectfully alleges for her complaint against THE
CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER PRINCE PHILIP, POLICE OFFICER JULIO ADAMES, and POLICE
OFFICER JOHN DOE(S), hereinafter referred to as "defendants" as
follows:

NATURE OF THE INSTANT ACTION

1. This is a civil action, brought pursuant to 42 U.S.C.
§§ 1983 and 1988 for violations of the First, Fourth, Fifth,
Eighth, and Fourteenth Amendments to the United States
Constitution, and under the common law and the Constitution of
the State of New York, against the defendants.

2. The instant action seeks to hold the defendants liable for physical and emotional, economic injuries, past pain and suffering, future pain and suffering, false arrest, wrongful detainment in custody, assault, false imprisonment, harassment, unjust malicious prosecution, libel, slander, negligence, and misconduct. The unlawful actions of the defendants, alleged hereunder, resulted from affirmative *de facto* municipal policies, practices, and customs to violate the constitutional rights of criminal suspects and defendants, or from deliberate indifference by policy-making officials, acting on behalf of the City of New York, to such violations.

3. As plaintiff will demonstrate hereunder, as a matter of policy, the actions of, which violated the rights of the plaintiff, reflects a corrupt culture of misconduct indicative of New York Police Department police officers that has long existed at New York City Police precincts. The plaintiff was placed under arrest by Police Officer Prince Philip on March 27, 2023, at approximately 11:00 AM on the sidewalk near 3961 Carpenter Avenue, County of the Bronx, City and State of New York.

4. By this action, the plaintiff seeks redress for the violations of her civil rights and to recover damages she suffered as a result of the incidence complained of hereunder, including but not limited to legal fees, costs and expenses associated with defending the criminal proceedings, loss of reputation, costs and expenses associated with prosecuting the civil matter, punitive damages, mental anguish, pain and suffering, inconvenience, humiliation, and fear.

JURISDICTION AND VENUE

5. Jurisdiction is conferred upon this Court pursuant to 28 U.S.C. §1331, §1343(3), and 1343(4) as this action seeks redress for the violation of Plaintiff's civil rights and is authorized by law to redress the deprivation under color of law, statute, ordinance, regulation, custom and usage of a right, privilege, and immunity secured to plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States.

6. Plaintiff further invokes this Court's concurrent jurisdiction over any and all federal constitutional or common law claims that are so related to the instant claims within the original jurisdiction of this court that they form part of the same controversy.

7. That the award of attorney's fees is appropriate pursuant to 42 U.S.C. Sec. 1988.

8. Venue is proper in the Supreme Court, State of New York, County of Bronx pursuant to the Court's concurrent jurisdiction. Haywood v. Drown, 556 U.S. 729 (2009).

PARTIES

9. Plaintiff SHAWN BROWN is a resident of the State of New York, County of the Bronx.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. Upon information and belief, it is authorized under the laws of the

State of New York to maintain a police department, the New York Police Department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers. The New York Police Department's operations include the operations as described herein. Upon information and belief, the federal government partially funds the law enforcement activities of the New York Police Department.

11. Defendant New York City Police Department is an agency of the City of New York. The New York Police Department is legally responsible for torts its agents and employees commit within the scope of his/her employment and/or under color of law.

12. Police Officer Prince Philip, at all relevant times, is and was a commissioned officer employed by the New York Police Department, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the City of New York and acted within Police Officer Prince Philip's scope of employment. Police Officer Prince Philip is sued in both his individual and official capacities.

13. Defendant New York City Police Department is an agency of the City of New York. Upon information and belief, Officer Philip, a defendant named hereunder, holds a supervisory position as an agent and employee of the New York Police Department. The New York Police Department is legally responsible for torts its agents and employees commit within the scope of his/her employment and/or under color of law.

14. Police Officer Julio Adames, at all relevant times, is and was a commissioned officer employed by the New York Police Department, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the City of New York and acted within his scope of employment. Police Officer Julio Adames is sued in both his individual and official capacities.

15. Defendant New York City Police Department is an agency of the City of New York. Upon information and belief, Officer Adames, a defendant named hereunder, holds a supervisory position as an agent and employee of the New York Police Department. The New York Police Department is legally responsible for torts its agents and employees commit within the scope of his/her employment and/or under color of law.

16. Police Officer John Doe(s) at all relevant times, are and were commissioned officer(s) employed by the New York Police Department, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the City of New York and acted within their scope of employment. Police Officer John Doe(s) are sued in both his individual and official capacities.

17. Defendant New York City Police Department is an agency of the City of New York. Upon information and belief, Officer John Doe(s), defendant(s) named hereunder, hold supervisory position(s) as agent(s) and employee(s) of the New York Police Department. The New York Police Department is legally responsible for torts its agents and employees commit within the scope of their employment and/or under color of law.

18. At all relevant times, defendant's City of New York and the New York Police Department were responsible for the policy,

practice, supervision, implementation, and conduct of all New York Police Department matters and were responsible for the appointment, training, supervision, and conduct of all New York Police Department employees. In addition, defendant's City of New York and the New York Police Department were responsible for ensuring that its employees, including Officer Philip, Officer Adames, and Officer John Doe(s) obey the laws of the United States and the laws of the State of New York.

JURY DEMAND

19. Pursuant to the Seventh Amendment of the Constitution of the United States, Ms. Brown requests a jury trial on all issues and claims set forth in this Complaint.

FACTUAL ALLEGATIONS

20. Upon information and belief, On March 27, 2023, at approximately 10:00 a.m., the plaintiff was legally present at 3961 Carpenter Avenue, Bronx, NY 10466.

21. Upon information and belief, the plaintiff then proceeded to an apartment in the building and knocked on the door.

22. Upon information and belief, the plaintiff proceeded to knock on the door and requested aid from the person who opened the door as people were following the plaintiff in the building.

23. Upon information and belief, the individual who answered the door at 3961 Carpenter Avenue, Bronx, NY 10466,

spoke with the plaintiff and provided the plaintiff with a bottle of water.

24. Upon information and belief, the plaintiff subsequently left the apartment at 3961 Carpenter Avenue, Bronx, NY 10466, on the plaintiff's own accord.

25. Upon information and belief, the plaintiff was in a deli, at approximately 11:15 a.m., and then left the deli on East 222nd Street and Carpenter Avenue, Bronx, NY 10466, when the police arrived.

26. Upon information and belief, on March 27, 2023, at approximately 11:15 a.m., New York Police Department Officers grabbed the plaintiff and placed the plaintiff under arrest outside the deli.

27. Upon information and belief, Officer Prince Philip handcuffed the plaintiff's hands behind her back then forcibly pushed the plaintiff to the ground.

28. Upon information and belief, Officer Julio Adames handcuffed the plaintiff's hands behind her back then forcibly pushed the plaintiff to the ground.

29. Upon information and belief, Officer John Doe(s) handcuffed the plaintiff's hands behind her back then forcibly pushed the plaintiff to the ground.

30. Upon information and belief, on March 27, 2023, New York Police Department Officers placed the plaintiff in a police car.

31. Upon information and belief, on March 27, 2024, New York Police Department Officer Prince Philip did not have a warrant for the plaintiff's arrest.

32. Upon information and belief, on March 27, 2024, New York Police Department Officer Julio Adames did not have a warrant for the plaintiff's arrest.

33. Upon information and belief, on March 27, 2024, New York Police Department Officer John Doe(s) did not have a warrant for the plaintiff's arrest.

34. Upon information and belief, on March 27, 2023, the plaintiff was taken to New York Police Department, 47th Precinct, 4111 Laconia Avenue, Bronx, NY 10466, where the plaintiff was arrested by Police Officer Prince Philip and assigned arrest number B23612799. The plaintiff was charged with PL 230.04, one (1) count of patronizing a person for prostitution in the third degree, PL 140.15(1), one (1) count of criminal trespass and PL 140.05, one (1) count of trespass.

35. Upon information and belief, on March 27, 2023, the plaintiff was then taken to a holding cell at the New York Police Department, 47th Precinct, 4111 Laconia Avenue, Bronx, NY 10466.

36. Upon information and belief, on March 27, 2023, the plaintiff was photographed and fingerprinted at the New York

Police Department, 47th Precinct, 4111 Laconia Avenue, Bronx, NY 10466.

37. Upon information and belief, on March 27, 2023, plaintiff went to Montefiore Wakefield Campus Emergency Department for treatment for neck pain, back pain, and wrist pain as a result of the officer's force when arresting the plaintiff.

38. Upon information and belief, on March 27, 2023, the plaintiff was then taken to central booking at 215 E 161st Street, Bronx, NY 10451, where plaintiff was processed and spoke to a Bronx Defenders Attorney.

39. Upon information and belief, on March 27, 2023, plaintiff went to Lincoln Medical Center Emergency Department for treatment for concerns of hyperglycemia while in custody.

40. Upon information and belief, on March 27, 2023, plaintiff was then taken back to central booking at 215 E 161st Street, Bronx, NY 10451, where plaintiff was processed again.

41. Upon information and belief, on March 28, 2023, the plaintiff appeared before a Judge in the Criminal Court of Bronx County where the plaintiff was given a court date to return to Court

42. Upon information and belief, on March 28, 2023, the plaintiff was released on her own recognizance.

43. Upon information and belief, the plaintiff made approximately eight court appearances.

44. Upon information and belief, the plaintiff was never indicted on any charges.

45. Upon information and belief, on November 30, 2023, the charges against the plaintiff were dismissed.

FIRST CAUSE OF ACTION

DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. §1983
AGAINST DEFENDANT CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER PRINCE PHILIP, POLICE OFFICER JULIO
ADAMES, AND POLICE OFFICER JOHN DOE(S)

46. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 45 with the same force and effect as if fully set forth herein.

47. Defendant City of New York and its agents, servants and employees, including but not limited to defendants The New York Police Department, Police Officer Price Philip, Police Officer Julio Adames, and Officer John Doe(s), deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America and in violation of 42 U.S.C. §1983.

48. All of the aforementioned acts of all defendants named herein were carried out under the color of state law.

49. Officer Philip carried out the acts complained of herein in his official capacity as a police officer with the actual and/or apparent authority attendant thereto under the scope of his

employment with the City of New York and his conduct violated plaintiff's statutory and constitutional rights which a reasonable person would have known.

50. Officer Philip carried out the acts complained of in his capacity as a police officer, pursuant to the customs, usages, practices, procedures, and the rules of defendant's City of New York and the New York Police Department, as a ranking officer of the New York Police Department.

51. Officer Adames carried out the acts complained of herein in her official capacity as a police officer with the actual and/or apparent authority attendant thereto under the scope of his employment with the City of New York and his conduct violated plaintiff's statutory and constitutional rights which a reasonable person would have known.

52. Officer Adames carried out the acts complained of in his capacity as a police officer, pursuant to the customs, usages, practices, procedures, and the rules of defendant's City of New York and the New York Police Department, as a ranking officer of the New York Police Department.

53. Officer John Doe(s) carried out the acts complained of herein in their official capacities as police officers with the actual and/or apparent authority attendant thereto under the scope of his employment with the City of New York and his conduct violated plaintiff's statutory and constitutional rights which a reasonable person would have known.

54. Officer John Doe(s) carried out the acts complained of in their capacity as police officers, pursuant to the customs, usages,

practices, procedures, and the rules of defendant's City of New York and the New York Police Department, as ranking officers of the New York Police Department.

55. All defendants, collectively and individually, while acting under color of state law, engaged in unconstitutional conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality's authority, which is forbidden by the Constitution of the United States.

56. As a result of the defendants' conduct, which inherently violated the Constitution of the United States, caused the plaintiff significant harm and injury.

57. As a result of the defendants' unconstitutional conduct, plaintiff demands judgment against all defendants in a sum of money to be determined at trial.

SECOND CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT RIGHTS UNDER 42 U.S.C.
§1983 ARISING FROM DEFENDANTS' MALICIOUS PROSECUTION OF THE
PLAINTIFF

58. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 57 with the same force and effect as if fully set forth herein.

59. The defendants initiated a criminal proceeding against plaintiff, the proceeding terminated in plaintiff's favor, there was no probable cause for the criminal charges and the defendants acted maliciously.

60. Plaintiff was caused to suffer a post arrest deprivation of liberty and restraint having been held in custody by the defendants, defendant officers and detective in violation of plaintiff's Fourth Amendment rights.

61. The defendants arrested plaintiff on March 27, 2023, and initiated a criminal proceeding against plaintiff shortly thereafter.

62. The criminal proceeding was terminated in plaintiff's favor on November 30, 2023, the dismissal was a termination of the criminal action in favor accused and pursuant to section 160.50 of the criminal procedure law.

63. Defendants did not have probable cause to arrest the plaintiff as the arrest was based on misrepresentation, fraudulent evidence, omissions in the police paperwork, and malice.

64. Defendants acted maliciously by misrepresenting and falsifying evidence, by withholding evidence, by committing perjury and fraud and by acting in bad faith as the police officers filed falsified instruments/documents/DD5's about any alleged observations regarding the acts resulting in the charges against the plaintiff.

65. The New York City Police Department, its officers and detectives acted maliciously in arresting the plaintiff without probable cause and based on bad faith as Police Officer Philip never observed plaintiff committing any wrongdoing and there was no evidence to justify the arrest.

66. Police Officer Prince Philip acted maliciously in arresting the plaintiff without probable cause and prosecuting based on bad faith and with actual malice.

67. Police Officer Julio Adames acted maliciously in arresting the plaintiff without probable cause and prosecuting based on bad faith and with actual malice.

68. Police Officer John Doe(s) acted maliciously in arresting the plaintiff without probable cause and prosecuting based on bad faith and with actual malice.

69. As the defendants dismissed all of the pending charges against the plaintiff, the defendants failed to collect evidence as they lacked probable cause to arrest.

70. Defendant acted with malice as defendant knowingly acted without probable cause to arrest the plaintiff. Lightning Lube, Inc. v Witco Corp., 4 F.3d 1153 (3rd Cir. 1993). Malice can be inferred from the lack of probable cause. Ayala v Randolph Township, 103014 NJDC 12-7809 (SDW) (SCM).

71. The defendants intentionally and with deliberate and reckless disregard for the truth caused plaintiff's prosecution to continue despite knowing that there was no probable cause.

72. The defendants, Police Officer Prince Philip, Police Officer Julio Adames, and Police Officers John Doe(s) intentionally and with deliberate and reckless disregard for the truth failed to investigate additional evidence that would have ceased the prosecution of the plaintiff.

73. As a result, the plaintiff was harmed, and seeks compensation in an amount to be determined at trial.

THIRD CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT RIGHTS UNDER 42 U.S.C.
§1983 ARISING FROM DEFENDANTS' FALSE ARREST AND FALSE
IMPRISONMENT OF THE PLAINTIFF

74. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 73 with the same force and effect as if fully set forth herein.

75. The defendant New York Police Officers intended to confine plaintiff, plaintiff was conscious of the confinement, plaintiff did not consent to the confinement and the confinement of the plaintiff was not privileged.

76. The defendant New York Police Officers authorized, directed, and instigated plaintiff's detention.

77. Police Officer Prince Philip arrested plaintiff without probable cause, intended to confine plaintiff against her will, which confinement was not privileged, and it was based on falsified, fabricated evidence.

78. Police Officer Julio Adames arrested plaintiff without probable cause, intended to confine plaintiff against her will, which confinement was not privileged, and it was based on falsified, fabricated evidence.

79. Police Officer John Doe(s) arrested plaintiff without probable cause, intended to confine plaintiff against her will, which confinement was not privileged, and it was based on falsified, fabricated evidence.

80. Police Officer Prince Philip arrested plaintiff on March 27, 2023, based upon the information provided by an individual that was not reliable and failed to provide the defendants with truthful information.

81. Police Officer Julio Adames arrested plaintiff on March 27, 2023, based upon the information provided by an individual that was not reliable and failed to provide the defendants with truthful information.

82. Police Officer John Doe(s) arrested plaintiff on March 27, 2023, based upon the information provided by an individual that was not reliable and failed to provide the defendants with truthful information.

83. The defendant police officers placed the plaintiff in handcuffs against her will, plaintiff was fully aware of the restraint and confinement and was placed in a police car and taken to the 47th Police Precinct and central booking and held in custody until her release on March 28, 2023.

84. The defendants' confinement of the plaintiff was unlawful, without probable cause, without a warrant, without any reasonable belief that any crimes were committed, no officers could reasonably agree that there was probable cause to arrest plaintiff, is not subject to any immunity and was solely based on the fabricated allegations by an individual. Broughton v. State of New

York, 37 N.Y.2d 451, 456, 335 N.E.2d 310, 373, 373 N.Y.S.2d 87 (Ct. App. 1975).

85. The confinement of the plaintiff was not privileged, and the prosecution was deemed a nullity, and the accused shall be restored in contemplation of law to the status occupied before the arrest and prosecution.

86. The totality of the circumstances surrounding plaintiff's arrest, outweighs any probable cause that they had to arrest and charge the plaintiff for the abovementioned crime.

87. As a result, plaintiff was severely injured and seeks compensation in a sum to be determined at trial.

FOURTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER *MONELL* UNDER 42 U.S.C. §1983
ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICIES AND CUSTOMS

88. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 87 with the same force and effect as if fully set forth herein.

89. Defendant City of New York and New York Police Department established official policies directing and promoting unconstitutional practices by New York Police Department officers and have tolerated, condoned, and permitted widespread unconstitutional practices by New York Police Department officers, including Officers Philip, Adames, and John Doe(s).

90. Defendant's The City of New York and The New York Police Department employs a municipal policy and custom known as the "Compstat" program that was instituted to reduce crime.

91. The Compstat program personnel developed the Pattern Identification Module ("PIM") for each borough of the City in an attempt to reduce crime.

92. The Pattern Identification Module ("PIM") was employed to identify patterns of crime by trends, clusters, method and location and keep track of perpetrator descriptions for similarities and identification amongst alleged perpetrators.

93. The Pattern Identification Module ("PIM") of the Compstat program and policy would permit defendants The City of New York and the New York City Police Department to fit a series of crimes into "patterns."

94. Defendants City of New York and The New York City Police Department's Pattern Identification Module Program ("PIM") would fit and identify individual and distinct crimes as patterns crimes involving the same perpetrator(s) despite being distinct and separate crimes.

95. The actions of defendants in executing multiple arrests of plaintiff were a direct attempt to make individual and distinct crimes fit into a pattern.

96. Defendants The City of New York and The New York City Police Department had a custom and policy in effect at the time of plaintiff's arrests and imprisonment of intentionally identifying distinct and separate crimes as "pattern crimes" to statistically

reduce the crime rate numbers in New York City which resulted in a direct violation of plaintiff's constitutional rights as plaintiffs alleged acts were classified as a "pattern."

97. Defendants Pattern Identification Module Program ("PIM"), as part of the Compstat policy and program, was unconstitutional as arrests were made to fit into a "pattern" in an effort to reduce crime statistic numbers in New York City, including that of plaintiff.

98. Defendant City of New York indemnifies and shields New York Police Department officers who repeatedly and habitually violate constitutional rights, such as the officers involved in the plaintiff's arrest.

99. Defendant City of New York fails to discipline police misconduct, thereby ensuring that such misconduct, corruption and continues in an effort and policy to make arrests and meet quotas.

100. Defendant City of New York implements tolerates and fails to punish unlawful and false arrests and fails to investigate its own officers for patterns of police misconduct and complaints regarding false arrests stemming from falsified records and documents.

101. These policies and practices caused the unlawful conduct of Officers Philip, Adames, and John Doe(s).

102. As a result, plaintiff was harmed and injured and seeks compensation in a sum to be determined at trial.

FIFTH CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT RIGHTS UNDER 42 U.S.C. §1983 ARISING FROM DEFENDANTS' NEGLIGENT HIRING, RETENTION AND TRAINING OF ITS POLICE OFFICERS AND MEMBERS

103. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 102 with the same force and effect as if fully set forth herein.

104. The City of New York protects and isolates members of the New York Police Department from any personal liability for civil damages when officers such as Officers Philip, Adames, and John Doe(s) are accused of violating the constitutional rights of individuals, by indemnifying officers against that are accused of committing bad acts.

105. By doing so, the City of New York removes and neutralizes the strong deterrent effects that documented accusations and subsequent liability would otherwise have on NYPD officers accused of committing acts that violate individuals' constitutional rights.

106. Moreover, the City of New York and the New York Police Department do not discipline its members for incurring civil liability, nor for being accused of violating the constitutional rights of individuals and as a result, members of the New York Police Department continue to commit unconstitutional acts against individuals in their custody.

107. Furthermore, the City of New York and the New York Police Department do not train or educate their officers and

employees for incurring civil liability, or as a result of receiving civilian complaints against their officers' unconstitutional acts of violence against individuals in their custody.

108. Shielded by these policies of the City of New York and the New York Police Department, officers and employees continue to commit unconstitutional acts which are an example of this practice.

109. The defendants negligently hired and retained its agents, servants, officers and/or employees.

110. The defendant's actions lead to the plaintiff's arrest that could have been avoided if the defendants performed their jobs an appropriate manner and competent manner.

111. As a result, plaintiff was severely injured and seeks compensation in a sum to be determined at trial.

SIXTH CAUSE OF ACTION

PLAINTIFF SHAWN BROWN IS ENTITLED TO REIMBURSEMENT FOR LEGAL
FEES AND EXPENSES

112. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 111 with the same force and effect as if fully set forth herein.

113. Plaintiff SHAWN BROWN seek the reimbursement which includes but is not limited to payment to the criminal attorney,

and other ancillary expenses associated with the confinement and trial of the plaintiff.

SEVENTH CAUSE OF ACTION

PLAINTIFF'S ATTORNEY IS ENTITLED TO REASONABLE ATTORNEY'S FEES
PURSUANT TO 42 U.S.C. SECTION 1988

114. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 113 with the same force and effect as if fully set forth herein.

115. In any action or proceeding to enforce a provision of 42 U.S.C. Section 1983, the court in its discretion, may allow the prevailing party, other than the United States, a reasonable attorney's fee as part of the costs.

116. Plaintiff's attorneys hereby request that if they prevail in the above litigation that they be awarded reasonable attorney's fees as part of the costs.

117. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 116 with the same force and effect as if fully set forth herein.

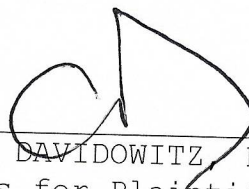
118. Pursuant to 42 U.S.C. 1983, plaintiff demands an award of punitive damages against the individual defendants.

119. The plaintiff has been damaged and injured in her good name and reputation, caused to suffer great humiliation, pain and suffering, and anguish.

WHEREFORE, plaintiff demands judgment against defendants in an amount in excess of all lower courts which would otherwise have jurisdiction over this matter, together with the costs and disbursements of this action and attorney's fees.

DATED: New York, New York
June 6, 2024

Respectfully submitted,



CRAIG L. DAVIDOWITZ, P.C.
Attorneys for Plaintiff
Office & P.O. Address
450 Seventh Avenue Suite 2702
New York, NY 10123
Tel. (212) 378-2051

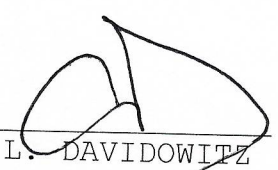
ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury:

That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing **SUMMONS & VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true. Deponent further states that the reason this verification is made by deponent and not by the plaintiff(s) is that plaintiff(s) reside(s) in a county other than that in which deponent maintains his/her offices.

The grounds for deponent's belief as to all matters not stated upon his/her knowledge are investigations which he/she has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
June 6, 2024


CRAIG L. DAVIDOWITZ

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

SHAWN BROWN,

Plaintiffs,

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
PRINCE PHILIP, POLICE OFFICER JULIO
ADAMES, and POLICE OFFICER JOHN DOE(S),**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

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